

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SRI LANKA

Complete Community Opposition How-To

This guide uses the Sri Lankan legal terms you'll actually run into — the prescribed project, the IEE and the EIA, the Project Approving Agency, the Central Environmental Authority, the mandatory public comment period, the fundamental rights application, the public trust doctrine — and explains each in plain words the first time. Sri Lanka's environmental law has been amended and further change proposed, so always check the current position.

INTRODUCTION & FRAMEWORK

In the ancient farming country of Eppawala, in Sri Lanka's North Central Province, the government struck a deal in the late 1990s with an American company, Freeport McMoRan, to strip-mine a vast **phosphate** deposit — a project that would have swallowed farmland, villages, temples, and the ancient irrigation tanks the region had lived by for two thousand years, and would have exhausted, in a few decades, a resource that took geological ages to form. The villagers refused to accept it. Led by ordinary cultivators and the chief incumbent of a local temple, seven residents of Eppawala did something quietly revolutionary: they filed a **fundamental rights application directly in the Supreme Court**, arguing the deal violated their constitutional rights. In the landmark **Bulankulama case of 2000**, the Supreme Court **stopped the project** — and, in doing so, held in plain terms that the State holds the nation's natural resources **in trust for the people**, that development must respect **intergenerational equity** and the **precautionary principle**, and that no government may sign away the country's heritage without proper legal and environmental process. Villagers had beaten a foreign mining giant with a constitutional petition — and rewritten Sri Lanka's environmental law in the process.

The seven residents of Eppawala who stopped a phosphate mine with a Supreme Court petition drew on a genuinely strong toolkit. Under the **National Environmental Act**, projects designated **prescribed projects** cannot proceed without environmental approval, obtained through an **Initial Environmental Examination (IEE)** or, for larger projects, a full **Environmental Impact Assessment (EIA)** — and where an EIA is required, the report must be **open for public inspection and comment for a mandatory 30 days**, with the comments sent to the proponent for response; protest, petition, and litigation are lawful. Behind that sits an accessible court: the **fundamental rights application** to the Supreme Court and the **writ application** to the Court of Appeal, armed with the **public trust doctrine** — the principle, which Sri Lankan judges genuinely apply, that the State holds the nation's resources in trust for the people, bound by intergenerational equity and the precautionary principle. But these tools have real limits, and this guide states them plainly. Enforcement of even landmark judgments has been **inconsistent**; **political interference** in projects is common; public participation is often run as a **formality**; and a determined, state-backed project is hard to stop outright. So the realistic goal is to make the approval process real, put your objections on the record, and — where the harm is grave — carry the case to the courts that stopped Eppawala.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Sri Lankan project, if it's a **prescribed project**, needs environmental approval (an **IEE or EIA**) from a

Project Approving Agency; an EIA must survive the **30-day public comment**; and any decision, and the underlying agreement, can be challenged in the **courts** on the **public trust doctrine**. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project is grave and the process or the deal was unlawful, the courts genuinely bite** — the fundamental rights application and the public trust doctrine stopped Eppawala.
- **If it's a prescribed project needing an EIA, the mandatory 30-day comment is a real, timed lever.**
- **If the state backs it hard, an outright stop is difficult and enforcement can be inconsistent** — aim honestly at a real process, objections on the record, conditions, delay, and a clean court ground.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the approval process, the 30-day comment, the courts, the public trust doctrine — and **run every front at once**: the documents, the comment, the courts, the community, the press. That's how Eppawala was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

For a **prescribed project**, environmental approval is granted by a **Project Approving Agency** — often the **Central Environmental Authority (CEA)** or a designated line agency — on the basis of an **IEE** or a full **EIA**, with the scope set by **Terms of Reference** and the report vetted by a **Technical Evaluation Committee**. Sector agencies grant the mining, water, or land rights. And above all sit the **courts**: the Supreme Court on fundamental rights, the Court of Appeal on writs. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

The approval: IEE or EIA. A prescribed project is screened; larger projects need a full **EIA**, scoped by Terms of Reference. *Your opening* — *where the EIA route applies*: the **mandatory 30-day public inspection and comment**, when the report must be advertised and available at the CEA, the Divisional Secretariat, and the local Pradeshiya Sabha — and your comments **must be sent to the proponent for response**.

The decision. The Project Approving Agency approves or refuses. *Your opening*: a decision on a defective assessment, or a project that skipped the required process, is vulnerable in the courts.

The agreement and construction. *Your opening*: an unlawful agreement (as at Eppawala) or breaches of conditions — challengeable on the public trust doctrine.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign company or financier, whose reputation is a pressure point. **What it still needs** — the approval not granted or under challenge, the agreement not signed, the financing not closed: whatever's missing is the soft spot. **What agreement underpins it** — because an unlawful or one-sided state agreement, as at Eppawala, is itself a target.

Who's Supposed to Be Watching

Each is an ally or an arena. The **CEA and the Project Approving Agencies** run the approval and take comments. The **Supreme Court** (fundamental rights) and **Court of Appeal** (writs) review the legality of decisions and agreements, armed with the public trust doctrine — the Eppawala route. The **Human Rights Commission** takes complaints. And Sri Lanka's **environmental organisations (like the Environmental Foundation)**, **its temples and community groups**, and **its press** are the forces that reach furthest — the combination that carried Eppawala.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the process or the agreement was unlawful, whether the harm is grave enough for the courts, and how determined the state is.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment in the mandatory 30-day EIA period	15–35%	30 days	low	On record; must be answered; conditions or redo
Fundamental rights application (Supreme Court)	30–55%	months–2 yr	low–mod	Project halted on rights / public trust (Eppawala)
Writ application (Court of Appeal)	25–50%	1–2 yr	mod	Decision or approval quashed
Challenge the underlying agreement	25–50%	1–2 yr	mod	Unlawful deal struck down
Community mobilisation + press	25–50%	months–yr	low	Pressure; delay; political cost
Everything together (grave harm, unlawful process)	40–60%	1–3 yr	mod	Halted, quashed, conditioned, delayed
Everything together (state-backed, clean-ish process)	20–40%	1–3 yr	mod	Delayed, conditioned, exposed

The levers that move the needle most are the **fundamental rights application** armed with the **public trust doctrine**, the **writ application**, and the **mandatory 30-day comment**, backed by the community and the press. Eppawala shows the ceiling (a foreign mine stopped, the law remade). The honest floor is inconsistent enforcement and a state that backs its projects hard — so aim for a real process, a clean court ground, conditions, and delay as well as an outright stop.

On cost: commenting and organising are cheap; and public-interest organisations like the Environmental Foundation institute and assist this litigation, which is how villagers reached the Supreme Court at Eppawala. The courts are genuinely accessible to ordinary people.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this defective EIA, this unlawful agreement, this public-trust breach — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the company, its owners, its financiers, and any state agreement.

2. Where is it, and what does it touch? Get the footprint and lay it over your farmland, tanks and irrigation, forests, water, temples and heritage, protected areas. **Irreplaceable heritage and resources — ancient tanks, a finite deposit, sacred sites — are your strongest ground**, as at Eppawala, and they speak directly to the public trust doctrine.

3. What stage is it at, and what's the next deadline? Is it a prescribed project? Is an EIA open for the **30-day comment** (a strict, unmissable window)? Has approval been granted (opening the courts)? These openings are time-bound.

4. What does it still need that it lacks? Approval not granted, an agreement not signed, financing not closed. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring villages, farmers, the temple and its community, environmental organisations. Eppawala united cultivators with a temple incumbent.

What this looks like in real life. A community learns a mine or project will destroy its farmland, tanks, and temple, under a state deal with a foreign company. The five questions yield: a company and a state agreement; irreplaceable heritage and resources at stake (the public-trust ground); an EIA due or approval pending; a project still needing approval; and a coalition of villagers and the temple. That's the Eppawala pattern — comment in the 30 days, and prepare the fundamental rights application on the public trust doctrine.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the IEE or EIA and its Terms of Reference, the approval and conditions, the state agreement, the Technical Evaluation Committee record. Sri Lanka's Right to Information Act lets you demand what isn't public. Then read the assessment hard for flaws — an understated impact on tanks, water, or heritage, an ignored alternative, a finite resource treated as if endless (the Eppawala point), a process or agreement that breached the law.

Layer two: the ground truth. Dated, located photographs and video of the farmland, tanks, water, forests, and temples — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of heritage and harm. Lay the project over your tanks, farmland, water, and temples, so the harm to irreplaceable heritage and resources — the heart of a public-trust case — is undeniable. Walking into the 30-day comment, or the Supreme Court, with the assessment, the agreement, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The IEE/EIA and Terms of Reference, the approval and conditions, the state agreement, the TEC record** — from the CEA and the Project Approving Agency; force out the rest under the Right to Information Act (8A).

- **Local and heritage records** — from the Divisional Secretariat, the Pradeshiya Sabha, and heritage authorities.
- **Ownership and financing** — company records and the state agreement.
- **The heritage-and-harm map** — tanks, farmland, water, and temples, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Eppawala's cultivators and temple stood together. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the farmers who know the tanks and land, the temple and its community, a few tireless organisers, and respected local figures.

Draw on heritage and faith. Eppawala's power lay partly in what it defended — ancient tanks, a temple, two thousand years of farming. A community defending irreplaceable heritage, with its temple and elders, carries a moral weight that reaches the courts and the country.

Bring in organisations and lawyers — early. Reach Sri Lanka's environmental organisations — the **Environmental Foundation** and others institute and assist exactly this litigation — and lawyers who can run a fundamental rights or writ application. They are how villagers reached the Supreme Court at Eppawala.

Build to last. Sri Lankan fights can run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first.

STEP 4: LEGAL CHALLENGES & THE PUBLIC TRUST DOCTRINE

Law is Sri Lanka's sharpest lever, because the courts are accessible and the public trust doctrine gives ordinary people a powerful ground.

Comment in the 30 Days — It Builds the Record

Where an **EIA** is required, the **mandatory 30-day public inspection and comment** is your first, timed lever. Inspect the report at the CEA, the Divisional Secretariat, and the Pradeshiya Sabha, and file detailed comments within the window — and remember your comments **must be sent to the proponent for response**, putting your objections formally on the record for any later court case. Miss the window and you lose a key advantage, so watch the advertisement and the dates.

The Fundamental Rights Application — the Eppawala Route

The route that stopped Eppawala is a **fundamental rights application** filed **directly in the Supreme Court** (under the Constitution), arguing that the project or the agreement imminently violates your fundamental rights. Ordinary villagers, with an organisation's help, can bring it. Alongside it, a **writ application** to the **Court of Appeal** can quash an unlawful approval or decision. These are genuinely accessible, powerful tools.

The Public Trust Doctrine, Intergenerational Equity, and the Agreement

Your strongest legal argument is the **public trust doctrine**: the State holds the nation's natural resources **in trust for the people**, and cannot sign them away — or permit their destruction — without proper process and regard for **intergenerational equity** and the **precautionary principle**. This is what stopped Eppawala, and it is especially powerful against a project that destroys irreplaceable heritage or exhausts a finite resource, or rests on an unlawful, one-sided state agreement.

The Honest Limits

Straight talk: the courts and the public trust doctrine are powerful, but enforcement of judgments can be inconsistent, political interference is common, and a state-backed project is hard to stop outright. So use the strong tools — the 30-day comment, the fundamental rights and writ applications, the public trust doctrine — pair them with the community and the press, and count a halted project, a quashed approval, a struck-down agreement, conditions, and delay as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Heritage becomes a public-trust case. Not "we oppose the mine" but *"this destroys ancient tanks and a temple, and exhausts a finite resource the State holds in trust for the people and future generations."*

A document becomes a legal flaw. *"The EIA understated the harm to our water and tanks and ignored alternatives — the approval is unlawful."*

An agreement becomes a target. *"The State signed away our heritage without proper process — a breach of the public trust."*

The harm becomes a story of loss. *"Two thousand years of farming, our tanks and our temple — for a mine that empties the land in a few decades."*

Match it to the venue: the objections to the 30-day comment and the CEA; the public-trust and rights arguments to the Supreme Court; the unlawful approval to the Court of Appeal; the human and heritage story to the press.

STEP 5: MEDIA STRATEGY

In Sri Lanka, publicity gives a local fight national weight — Eppawala became a cause célèbre and a landmark. A lively press, environmental organisations, and temple and community networks make the media front central.

Lead with heritage and people, not procedure. Not "the EIA was deficient" but "two thousand years of farming, our tanks and our temple, for a mine that empties the land in decades." Use your strongest material: dated photographs, the map of the project over the tanks and temples, community and temple voices, and any court action banked.

Work several audiences at once. Local and national press build political pressure; environmental organisations amplify; and where a foreign company is involved, international attention reaches its reputation. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action, and let the community and temple shape the story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Right to Information request (to the CEA / agency).

Subject: RTI request — [project].

"Under the Right to Information Act, we, residents of [place], request the IEE/EIA and its Terms of Reference, the approval and conditions, the Technical Evaluation Committee record, and the state agreement for [project] at [location]. [Contact.]"

8B — Comment in the mandatory 30-day period.

Subject: Public comment on the EIA for [project].

"We, residents of [place], object to [project]: [it destroys our tanks and farmland; the EIA understates the harm to water and heritage; it exhausts a finite resource; alternatives were ignored]. We ask that approval be refused, and that this comment be sent to the proponent for response. [Attach evidence.]"

8C — To an environmental organisation / lawyer.

Subject: Possible fundamental rights / writ application — [project].

"Our community faces [project], which threatens [our tanks, temple, and farmland] and rests on [an unlawful agreement / a defective EIA]. We've gathered [the EIA, the agreement, photographs]. We ask for your help to bring a fundamental rights application on the public trust doctrine, as at Eppawala. [Contact and evidence summary.]"

8D — Fundamental rights application (instructing counsel).

Subject: Fundamental rights application — [project].

"We instruct you to file a fundamental rights application in the Supreme Court against [project], on the grounds that it imminently violates our rights and breaches the public trust doctrine and intergenerational equity. [Attach the agreement, the EIA, and our evidence.]"

8E — To the Project Approving Agency.

Subject: Objection to approval — [project].

"We, residents of [place], ask that approval for [project] be refused: [the assessment is defective; the harm to heritage and water is grave; the public trust is engaged]. [Attach evidence.]"

8F — To a foreign company or financier.

Subject: Environmental, legal, and reputational risk in [project].

"We understand your company may be [behind / financing] [project] at [location], which destroys irreplaceable heritage and faces challenge on the public trust doctrine — the ground that stopped the Eppawala mine. We ask you to weigh this carefully. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect its land, tanks, and temple from [project].

"For two thousand years the people of [place] have farmed by [our tanks] at [location]. Now [project] threatens them — and our temple and heritage. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can protect our heritage — here's how.

"[Project] threatens [our tanks / temple / land]. At Eppawala, villagers and a temple stopped a foreign mine with a petition to the Supreme Court — and had the court declare our resources held in trust for the people. With the 30-day comment, the courts, and the public trust doctrine behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project, and above all the heritage and finite resources it threatens.** That's your strongest, public-trust ground.
2. **If an EIA is open, comment within the mandatory 30 days (8B) — the window is strict and your comment must be answered.**
3. **Request the documents (8A) under RTI, and read the assessment and agreement for flaws.**
4. **Photograph everything, with dates and places.**
5. **Reach an environmental organisation and a lawyer (8C), and prepare a fundamental rights application on the public trust doctrine (8D).**
6. **Unite the community and temple and go public (8G/8H).** Eppawala was won this way.

Even lean, those six use the 30-day window, build the record, and put the public-trust doctrine and the courts to work.

WHEN THE SYSTEM IS TILTED

Sri Lanka's tools are real, but the field can be tilted, and you must plan for it.

When the state backs the project. Political interference is common. Don't fold: use the courts and the public trust doctrine, keep the community and press engaged, and make the destruction of heritage a national cost.

When enforcement is inconsistent. Even a landmark judgment can be poorly enforced. Watch compliance closely, and return to court on any breach.

When participation is a formality. A token process is common. Document the flaw, use the 30-day window fully, and preserve the court ground.

When the deal is signed in secret. Use RTI to force it out; an unlawful, non-transparent state agreement is itself a target under the public trust doctrine.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Sri Lanka has real problems with the capture of projects and one-sided state agreements, so this matters.

How to spot it. Approvals against the evidence; a secret or one-sided state deal; an EIA written for the proponent; participation engineered to exclude; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Auditor-General** examines public money. The **Commission to Investigate Allegations of Bribery or Corruption** handles graft. The **Human Rights Commission** takes complaints. The **courts** can strike down a tainted approval or agreement on the public trust doctrine. And Sri Lanka's **press and environmental organisations** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the process was bent, what the agreement gives away, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the auditor, the bribery commission, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge on the public trust doctrine.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; the heritage and finite-resource harm aims it; the community and temple are the muscle; the 30-day comment and the courts press the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, the heritage and resources at stake, and whether it's a prescribed project; comment within any 30-day window; request the records under RTI; photograph the baseline; reach an organisation and a lawyer; build your coalition.

In the thick of it (months–years): bring the fundamental rights application on the public trust doctrine, and a writ application against a defective approval; deepen the coalition; open the media front.

The long haul (years): carry the litigation; watch enforcement of any judgment; hold the line for a halted project, a quashed approval, a struck-down agreement, conditions, or delay.

FINAL ASSESSMENT

Stopping a destructive project in Sri Lanka can be done — villagers and a temple stopped a foreign phosphate mine with a petition to the Supreme Court, and had the court declare the nation's resources held in trust for the people. Hold both truths. Sri Lanka's tools are strong: a mandatory environmental-approval system with a real 30-day public comment; an accessible Supreme Court and Court of Appeal; and the public trust doctrine, intergenerational equity, and the precautionary principle, which judges genuinely apply. And the constraints are real: inconsistent enforcement, political interference, formalistic participation, and state-backed projects that are hard to stop outright.

Here's the discipline that wins. Anchor your case in the irreplaceable — the ancient tanks, the temple, the finite resource the State holds in trust — and pry loose the assessment and the agreement under RTI. Use the mandatory 30-day comment fully, and put your objections on the record where they must be answered.

Then, where the harm is grave, bring a fundamental rights application on the public trust doctrine, as Eppawala's villagers did, and a writ against a defective approval. Unite the community and temple, carry the story to the country, and watch enforcement to the end. Count a halted project, a quashed approval, a struck-down agreement, conditions, and delay as wins alongside an outright stop. That's what Eppawala did — the villagers, the temple, and the public trust together. So can you.